

MINISTRY OF ENVIRONMENT & FORESTS
The Noise Pollution (Regulation and Control) Rules, 2000;

(As amended till 10/08/2017 vide S.O. 2555(E))

S.O.123 (E).- Whereas the increasing ambient noise levels in public places from various sources, inter-alia, industrial activity, construction activity, (*fire crackers, sound producing instruments*)¹, generator sets, loud speakers, public address systems, music systems, vehicular horns and other mechanical devices have deleterious effects on human health and the psychological well being of the people, it is considered necessary to regulate and control noise producing and generating sources with the objective of maintaining the ambient air quality standards in respect of noise;

Whereas a draft of Noise Pollution (Control and Regulation) Rules, 1999 was published under the notification of the Government of India in the Ministry of Environment and Forests vide number S.O. 528 (E) dated the 28th June, 1999 inviting objections and suggestions from all the persons likely to be affected thereby, before the expiry of the period of sixty days from the date on which the copies of the Gazette containing the said notification are made available to the public-,

And whereas copies of the said Gazette were made available to the public on the 1st day of July, 1999.

And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered by the Central Government-,

Now therefore, In exercise of the powers conferred by clause (ii) of sub-section (2) of section 3, sub-section (1) and clause (b) of sub-section (2) of section 6 and section 25 of the Environment (Protection) Act, 1986 (29 of 1986) read with rule 5 of the Environment (Protection) Rules, 1986, the Central Government hereby makes the following rules for the regulation and control of noise producing and generating sources, namely:

The Noise Pollution (Regulation and Control) Rules, 2000

1. Short title and commencement.

(1) These rules may be called the Noise Pollution (Regulation and Control) Rules, 2000.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions.- In these rules, unless the context otherwise requires,

(a) "Act" means the Environment (Protection) Act, 1986 (29 of 1986);

(b) "area/zone" means all areas which fall in either of the four categories given in the Schedule annexed to these rules;

1. In the said rules, in the opening para/portion after the words 'construction activity" additional words as at (1) above have been inserted vide **S.O.50 dated 11/01/2010.**

[(c) "authority" means and includes any authority or officer authorised by the Central Government, or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner, or any other officer not below the rank of the Deputy Superintendent of Police designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force;]²

[(d) "court" means a governmental body consisting of one or more judges who sit to adjudicate disputes and administer justice and includes any court of law presided over by a judge, judges or a magistrate and acting as a tribunal in civil, taxation and criminal cases;

(e) "educational institution" means a school, seminary, college, university, professional academies, training institutes or other educational establishment, not necessarily a chartered institution and includes not only buildings, but also all grounds necessary for the accomplishment of the full scope of educational instruction, including those things essential to mental, moral and physical development;

(f) "hospital" means an institution for the reception and care of sick, wounded, infirm or aged persons, and includes government or private hospitals, nursing homes and clinics;]³

[(g) "person" shall include any company or association or body of individuals, whether incorporated or not;]⁴

(h) "State Government" in relation to a Union territory means the Administrator thereof appointed under article 239 of the Constitution.

[(i) "*public place*" means any place to which the public have access, whether as of right or not, and includes auditorium, hotels, public waiting rooms, convention centres, public offices, shopping malls, cinema halls, educational institutions, libraries, open grounds and the like which are visited by general public; and

(j) "*night time*" means the period between 10.00 p.m. and 6.00 a.m.]⁶

3. Ambient air quality standards in respect of noise for different areas/zones.

(1) The ambient air quality standards in respect of noise for different areas/zones shall be such as specified in the Schedule annexed to these rules.

(2) The State Government (shall categorize)⁵ the areas into industrial, commercial, residential or silence areas/zones for the purpose of implementation of noise standards for different areas.

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2. In rule 2 for clause "(c) *authority*" means any authority or officer authorized by the Central Government, or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner, or any other officer designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force;" has been substituted with a new clause as at (2) above vide **S.O.1046 (E) dated 22/11/2000.**
 3. In rule 2, after Clause (c) new clause (d) (e) & (f) have been inserted as at (3) above vide **S.O.1046 dated 22/11/2000.**
 4. In rule 2, clause (d) & (e) have been re-numbered as clauses (g) and (h) respectively and for (g) as so renumbered "(g) *person*" in relation to any factory or premises means a person or occupier or his agent, who has control over the affairs of the factory or premises;" has been substituted as at (4) above vide **S.O. 1046 (E) dated 22/11/2000.**
 5. In sub-rule (2) of rule 3 of the said rules, for the words "may categorize", the words "shall categorize" has been substituted as at (5) above vide **S.O.1046 dated 22/11/2000**
 6. In the said rules, in rule 2, after clause (h), the following clauses (i) & (j) have been inserted as at (6) above vide **S.O. 50 dated 11/01/2010.**

(3) The State Government shall take measures for abatement of noise including noise emanating from vehicular movements, *(blowing of horns, bursting of sound emitting fire crackers, use of loud speakers or public address system and sound producing instruments)*⁹ and ensure that the existing noise levels do not exceed the ambient air quality standards specified under these rules.

(4) All development authorities, local bodies and other concerned authorities while planning developmental activity or carrying out functions relating to town and country planning shall take into consideration all aspects of noise pollution as a parameter of quality of life to avoid noise menace and to achieve the objective of maintaining the ambient air quality standards in respect of noise.

(5) An area comprising not less than 100 metres around hospitals, educational institutions and courts may be declared (by the State Government)¹⁴ as silence area/zone for the purpose of these rules.

{Provided that, an area shall not fall under silence area or zone category, unless notified by the State Government in accordance with sub-rule(2).}¹⁴

4. Responsibility as to enforcement of noise pollution control measures.

(1) The noise levels in any area/zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2) The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise.

[(3) The respective State Pollution Control Boards or Pollution Control Committees in consultation with the Central Pollution Control Board shall collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control and abatement.]⁸

5. Restrictions on the use of loud speakers/public address system (and sound producing instruments).¹⁰

(1) A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.

[(2) A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls or during a public emergency.]¹¹

[(3) Notwithstanding anything contained in sub-rule (2), the State Government may subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loud speakers or public address systems and the like during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural, religious or festive occasion of a limited duration not exceeding fifteen days in all during a calendar year and the concerned State Government or District Authority in respect of its jurisdiction as authorized by the concerned State Government shall generally specify in advance, the number and particulars of the days on which such exemption should be operative.

Explanation.- For the purposes of this sub-rule, the expressions-

- (i) “festive occasion” shall include any National function or State function as notified by the Central Government or State Government; and

(ii) “National function or State function” shall include”-

- (A) *Republic Day;*
- (B) *Independence Day;*
- (C) *State Day; or*
- (D) *such other day as notified by the Central Government or the State Government.]¹⁵*

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7. In rule 5 after sub-rule (2) new rule 3 has been inserted as at (7) above vide **S.O. 1088 (E) dated 11/10/2002.**
 8. In rule 4 after sub-rule (2) new sub-rule (3) has been inserted as at (8) above vide **S.O. 1569 (E) dated 19/09/2006.**
 9. In the said rules, in rule 3, in sub-rule (3) after the words “noise emanating from vehicular movements, the additional words as at (9) above have been inserted vide **S.O. 50 dated 11/01/2010.**
 10. In rule 5, for heading after the words “public address system” new words has been inserted as at (10) vide **S.O. 50 dated 11/01/2010.**
 11. In rule 5, sub-rule (2) has been substituted by new sub-rule as at (11) above vide **S.O. 50 dated 11/01/2010.**
 12. In rule 5, in sub-rule (3) for the words “public address systems during night hours” has been substituted by new words as at (12) above vide **S.O. 50 dated 11/01/2010.**
 13. In rule 5, in sub-rule (3) after the words “a limited duration.....a calendar year” new sentence has been added as at (13) above vide **S.O. 50 dated 11/01/2010.**
 14. In rule 3, in sub-rule (5) after the words “may be declared” the words “by the State Government” shall be inserted and there after new proviso is inserted as at (a) above vide **S.O. 2555 dated 10/08/2017.**
 15. In rule 5, for the existing sub-rule “(3) Not withstanding anything contained in sub-rule (2), the State Government may subject to such items and conditions as are necessary to reduce noise pollution permit use of loudspeakers or (public address system and the like during night hours)¹² (between 10.00 p.m. to 12.00 midnight) on or during any cultural or religious festive occasion of a limited duration not exceeding fifteen days in all during a calendar year.]⁷ (The concerned State Government shall generally specify in advance, the number and particulars of the days on which such exemption would be operative)¹³.” a new para is inserted as at (b) above vide **S.O. 2555 dated 10/08/2017.**

[(4) The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB (A) above the ambient noise standards for the area or 75 dB (A) whichever is lower;

(5) The peripheral noise level of a privately owned sound system or a sound producing instrument shall not, at the boundary of the private place, exceed by more than 5dB (A) the ambient noise standards specified for the area on which it is used.]]¹⁶

[5A. Restrictions on the use of horns, sound emitting construction equipments and bursting of fire crackers.

(1) No horn shall be used in silence zones or during night time in residential areas except during a public emergency.

(2) Sound emitting fire crackers shall not be burst in silence zone or during night time.

(3) Sound emitting construction equipments shall not be used or operated during night time in residential areas and silence zones.]]¹⁷

6. Consequences of any violation in silence zone/area.

Whoever, in any place covered under the silence zone/area commits any of the following offence, he shall be liable for penalty under the provisions of the Act:

(i) whoever, plays any music or uses any sound amplifiers,

(ii) whoever, beats a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrument, or

(iii) whoever, exhibits any mimetic, musical or other performances of a nature to attract crowds.

[(iv) whoever, bursts sound emitting fire crackers; or

(v) whoever, uses a loud speaker or a public address system.]]¹⁸

7. Complaints to be made to the authority.

(1) A person may, if the noise level exceeds the ambient noise standards by 10 dB(A) or more given in the corresponding columns against any area/zone (or, if there is a violation of any provision of these rules regarding restrictions imposed during night time,)¹⁹ make a complaint to the authority.

(2) The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

16. In rule 5, after sub-rule (3) new sub-rules (4) & (5) have been inserted as at (16) above vide **S.O. 50 dated 11/01/2010.**

17. In the said rules, after rule 5, new rule 5A has been inserted as at (17) above vide **S.O.50 dated 11/01/2010.**

18. In the said rules, in rule 6, after the clause (iii) new clauses (iv) & (v), as at (18) above have been inserted vide **S.O. 50 dated 11/01/2010.**

19. In the said rules, in rule 7 in sub-rule (1), after the words "in corresponding columns..... & ending with.....area/zone", new sentence as at (19) above has been inserted vide **S.O.50 dated 11/01/2010.**

8. Power to prohibit etc. continuance of music sound or noise.

(1) If the authority is satisfied from the report of an officer in-charge of a police station or other information received by him (including from the complainant)²⁰ that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person who dwell or occupy property on the vicinity, he may, by a written order issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating:

(a) the incidence or continuance in or upon any premises of -

(i) any vocal or instrumental music,

(ii) sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, (*public address systems, horn, construction equipment, appliance or apparatus*)²² or contrivance which is capable of producing or re-producing sound, or

[(iii) *sound caused by bursting of sound emitting fire crackers, or*]²³

(b) the carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2) The authority empowered under sub-rule (1) may, either on its own motion, or on the application of any person aggrieved by an order made under sub-rule (1), either rescind, modify or alter any such order:

Provided that before any such application is disposed of, the said authority shall afford to the applicant (and to the original complainant, as the case may be)²¹ an opportunity of appearing before it either in person or by a person representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, record its reasons for such rejection.

20. In rule 8, in sub-rule (1) after the words "received by him" the words "including from the complainant" has been inserted as at (18) above vide **S.O. 1569 (E) dated 19/09/2006**

21. In rule 8, in sub-rule (2) in the proviso, after the words "afford to the applicant", the words "and to the original complainant, as the case may be", has been inserted as at (19) above vide **S.O. 1569 (E) dated 19/09/2006**

22. In the said rules, in rule 8, in sub-rule (1), in clause (a) in sub-clause (ii), for the words, "public address systems, appliance or apparatus" new words have been substituted as at (20) above vide **S.O. 50 dated 11/01/2010.**

23. In the said rules, in rule 8, in sub-rule (1), in clause (a) after sub-clause (ii) new sub-clause (iii) as at (21) above has been inserted vide **S.O. 50 dated 11/01/2010.**

SCHEDULE
(see rule 3(l) and 4(l))

Ambient Air Quality Standards in respect of Noise

Area Code	Category of Area/Zone	Limits in dB(A) Leq *	
		Day Time	NightTime
(A)	Industrial area	75	70
(B)	Commercial area	65	55
(C)	Residential area	55	45
(D)	Silence Zone	50	40

Note:-

1. Day time shall mean from 6.00 a.m. to 10.00 p.m.
2. Night time shall mean from 10.00 p.m. to 6.00 a.m.
3. Mixed categories of areas may be declared as one of the four above mentioned categories by the competent authority.

*dB(A) Leq denotes the time weighted average of the level of sound in decibels on scale A which is relatable to human hearing.

A "decibel" is a unit in which noise is measured.

"A", in dB(A) Leq, denotes the frequency weighting in the measurement of noise and corresponds to frequency response characteristics of the human ear.

Leq : It is an energy mean of the noise level, over a specified period.

24. In the schedule to the said rules, for the note 3 and the entries thereto. "Silence zone is defined as an area comprising not less than 100 metres around hospitals, educational institutions and courts. The silence zones are zones which are declared as such by the competent authority." has been substituted as at (22) above vide S.O. 1046 (E) dated 22/11/2000.

25. In the schedule to the said rules, in the note, paragraph ("3. Silence zone is an area comprising not less than 100 meters around hospitals, educational institutions and courts, religious places or any other area which is declared as such by the competent authority ")²² has been omitted as may be seen above vide S.O. 2555 (E) dated 10/08/2017.

Note: The Principal rules were published in the Gazette of India vide Notification number S.O. 123(E) dated 14 February, 2000 and subsequently amended vide

- 1) S.O.1046(E) dated 22/11/2000;
- 2) S.O.1088(E) dated 11/10/2002;
- 3) S.O.1569(E) dated 19/09/2006;
- 4) S.O.50(E) dated 11/01/2010;
- 5) S.O.2555(E) dated 10/08/2017;

